

ACKNOWLEDGEMENT AND WAIVER OF RISK

Please read and be certain you understand the implication before signing.

Trekking/Hiking/Camping/Mountaineering and other related outdoor activities is a potentially dangerous activity with hazards including rock fall, danger from wild, risk due to sudden change of weather, hypothermia, fall on steep terrain, failure of climbing equipment, and the possibility to become lost, as well as all other hazards associated with hiking and trekking.

I, (Full Name)_____do hereby affirm and acknowledge that I have been fully informed of the inherent hazards and risk associated with Mountaineering, Trekking, Hiking, Camping, and transportation of equipment related to the activities, and travelling to and from activity sites in which I am about to engage.

Express Assumption of Risk Associated with Mountaineering, Climbing, Trekking, Camping and Related Activities.

Inherent hazards and risks include but are not limited to:

1. Risk of injury from the activity done and equipment utilized in Mountaineering, Climbing, Trekking, Camping and Related Activities permanent disability and death.
2. Possible equipment failure and/ or malfunction of my own or other equipment's.
3. My own negligence and/ or the negligence of others, including my teammates, group mate, climbing buddy, guides and porters.
4. Injury to hands, fingers, feet and toes, including but not limited to inflammation and/ or strain of muscles ligaments and/ or tendons, nerve damage, or compression and broken bones.
5. Injuries from falling that may occur from exposure to high altitude, which may affect judgment and coordination, or from not paying close attention to you climbing or others climbing with or near you.
6. Broken bones, severe injuries to the head, neck and back which may result in severe physical impairment or even death.
7. Discharge of weapons in or near the area of activity.
8. Cold weather and heat related injuries and illness including but not limited to frostnip, frost bite heat exhaustion, heat stroke, sunburn, hypothermia and dehydration.
9. Exposure to outdoor elements, but not limited rock fall, inclement weather, thunder and lightning, severe and or varied wind, temperature or weather conditions.
10. Attack by or encounter with insects, reptiles, poisonous and/ or dangerous plants, and/ or wild animals.
11. Accidents or illness occurring in remote places where there are no available medical facilities.
12. Fatigue, chill and/or dizziness, which may diminish my/our reaction time and increase the risk of accident, my sense of balance, physical coordination, and ability to follow instructions.

*I understand the description of these risk is not complete and that unknown or unanticipated risks may result in injury, illness or death.

Release of Liability, Waiver of Claims and Indemnity Agreement.

In consideration for being permitted to participate in any way in Mountaineering, Climbing, Trekking, Camping and Related Activities,

I hereby agree, acknowledge and appreciate that:

1. I HEREBY RELEASE AND HOLD HARMLESS WITH RESPECT TO ANY AND ALL INJURY, DISABILITY, DEATH, or loss or damage to person or property, whether cause by negligence or otherwise, the following named persons or entities, herein referred to as releasees: Local Government of Aborlan, Palawan, Its Officials, Officers, Department Heads, Employees, Representatives, Mountain guides, Porters and Volunteer.

2. To release the Local Government of Aborlan, Palawan, Its Officials, Officers, Department Heads, Employees, Representatives, Mountain guides, Guide assistant and Volunteer from liability and responsibility whatsoever and for any claims or causes of action that I, my estate, heirs, survivors, executors, or assign may have for personal injury, property damage, or wrongful death arising from the above activities whether caused by active or passive negligence of the releasees or otherwise. By executing this document, I agree to hold the releasees harmless and indemnify them in conjunction with any injury, disability, death, or loss or damage to person or property that may occur as a result of engaging in the above activities.

3. By entering into this agreement, I am not relying any oral or written representation or statements made by the releasees, other than what is set forth in this agreement. This release shall be binding to the fullest extent permitted by law. If any provision of this release is found to be unenforceable, the remaining terms shall be enforceable.

Disclosure of Responsibilities

The Local Government of Aborlan, Palawan in this trip is not a mountaineer, guide, and/or trained first aid attendant. The Local Government of Aborlan is only to organize the trip, ensure that it gets underway, know the access to the area, and have knowledge of a route or routes on the climb. It is therefore expected that each individual person or a group in this trip has the necessary skills, experience, fitness, and equipment. Each person is responsible for his or her own safety, having suitable first aid supplies and for confirming that his or her equipment is in good working order.

I HAVE READ THIS RELEASE OF LIABILITY, WAIVER OF CLAIMS, INDEMNITY AGREEMENT, ASSUMPTION OF RISK AGREEMENT AND DISCLOSURE OF RESPONSIBILITIES, AND I FULLY UNDERSTAND ITS TERMS, AND UNDERSTAND THAT I HAVE GIVEN UP LEGAL RIGHTS BY SIGNING IT, AND I SIGN IT FREELY AND VOLUNTARILY WITHOUT ANY INDUCEMENT.

Participants Signature

Name of Participants (Please Print)

Date

For Participants of minority age: this is to certify that I, as parent, guardian, temporary guardian with legal responsibility for this participant, do consent and agree not only to release his/her of Local Government of Aborlan, Palawan, but also to release and indemnify the Local Government of Aborlan, Palawan from any and all liabilities incident to his/her involvement in these **Mountaineering, Climbing, Trekking, Camping and Related Activities**, for myself, my heirs, my assigns, and next of kin.

Signature of parent or Legal Guardian if
Participants is a minor, and by their
signature, on my behalf release all
claims that both they and I have.

Name of Parent or adult legal
Guardian (Please Print)

Date

IMPORTANT REMINDER:

PLEASE BE AWARE THAT SIGNING THIS FORM MEANS THAT YOU ACKNOWLEDGE AND ACCEPT ALL THE HAZARDS OF MOUNTAINEERING, CLIMBING, TREKKING, CAMPING AND RELATED ACTIVITIES AND THAT YOU ARE GIVING UP ALL RIGHT TO SUE THE LOCAL GOVERNMENT OF ABORLAN, PALAWAN OR ANY OF ITS OFFICIAL, OFFICERS, DEPARTMENT HEADS, EMPLOYEES, REPRESENTATIVES, MOUNTAIN GUIDES, PORTERS AND VOLUNTEER FOR ANY UNTOWARD INCIDENT THAT MAY OCCUR ON/DURING THE TRIP.